

Serious Fraud Investigation Office Vs Adarsh Build Estate Ltd. & 186 others

Present: Sh. Lokender Singh Raghav, Special Public Prosecutor for the complainant-SFIO alongwith Sh.Arun Khatri, Sh. Pardeep Kadain, Sh. Vishal Singh, Sh. Abihnav Deshwal, Ms. Charu Sharma SFIO.

None for accused Nos. 1 to 70 companies

None for accused Nos. 71 to 78 companies

Accused No.79 company, represented through accused No.115 Vivek Hari Vyasi who is on interim bail.

Accused Nos. 80 company, represented through accused Naveen Kumar (No. 139).

Accused Nos. 81 and 82 companies, represented through accused Surender Singh (No. 140) who is on interim bail

Accused No.83 company

Sh. Somender, AR on behalf of accused No. 84 & 85 company

Accused Nos. 86, 87 and 88 companies, represented through accused Ravi Tak (No. 166)

Accused No. 89 company represented through AR in person

Accused Nos. 90 to 93 companies, represented through accused No.115 Vivek Hari Vyasi who is on interim bail
Accused Nos. 94 to 97 companies, represented through Shri Rahul, AR, in person

Accused No. 98 company, represented through Shri Naresh Kumar, AR, in person

Accused Nos. 99 and 100 companies, represented through accused Raj Kumar Modi (No. 176) who is on interim bail

Accused No. 101 company, represented through AR, in person

Accused No. 102 company, represented through Shri Deepak, AR, in person

AR for accused No.103 company

Accused No. 104 company, represented through Shri Vicky, AR , in person

Accused No. 105 company represented through Shri Anoop, AR , in person

Accused No. 106 company represented through Shri Kashi Nath Jha, AR, in person

None for accused No. 107

Accused No. 108 company represented through AR
(sought exemption today)

Accused No. 109 to 112 companies, represented through ARs, in person

Accused No. 113/Mukesh Modi not produced.

Accused No.114 Rahul Virendra Modi not produced.

Accused No.115 Vivek Harivyasi on bail (sought exemption)

Accused No.116 Nitin in person.

Accused No.117 Priyanka Modi in person, represented by Sh Manl Mittra, Advocate

Accused No.118 Jitender, 127, 129 and 141 in person

Accused Vinay Kumpawat (No. 119) already declared proclaimed person vod 27.07.2022

Accused No. 120/Vibhav Lodha **is on bail**

Proceedings qua accused No.122 Virender Modi stood abated vide order dated 13.11.2024

Accused No. **123**/Rohit Modi not present.

Accused No.124 Neha Ghelawat **in person.**

Accused No. **125**/Rajeshwar Singh, **who is on bail in this case but in custody in other case, not produced before the Court by concerned jail authority at Jodhpur ‘**

Accused No.**126**/Bharat Modi, **who is on bail in this case but in custody in other case, (not produced before the Court by concerned jail authority)**

Accused Jainam Rathod (No.**130**) in person.

Accused No. **131**/Ishwar Singh Sindal, **who is on bail in this case but in custody in other case (not produced before the Court)**

Accused No.132, 133 not present.

Accused No.**134**/Vivek Purohit, **who is on bail in this case but in custody in other case (not produced before the Court)**

Accused No. 135/ Siddharth Chauhan not present.

Accused Akshat Singh (No. **136**) **on bail** in person, represented by Shri Amol Gupta, Advocate

Accused Shinder Pal Singh (No. 137) already declared proclaimed person vod 03.05.2024

Accused no. 138 Gurbit singh in person represented by his counsel

Accused Naveen Kumar (No.139) on bail, represented by Sh Ishaan Mukherjee and Sh Vinayak Gupta, Advocates

Accused Surender Singh (No. 140) on interim bail, in person

Accused No. **142**/Bharat Das Vaishnav, **who is on bail in this case but in custody in other case (not produced before the Court by concerned jail authority)**

Accused No.**143**/Sudhir Punia is **on bail** in person

Accused Joydeep Das Gupta (No.144) and Lovekush Sharma (No.145), on bail, but granted personal exemption(s) till further orders vide order dated 22.11.2019, represented through Shri Vishal Gupta, Advocate.

Accused Leena Harivyasi (No. 146) on bail, exempted till further orders vide order dated 03.05.2024 represented through counsel

Accused Vimal Sanwarmal Sharma(No.147), **on bail**, in person.

Accused Avanish Kumar Tyagi (No.148) on bail, but granted personal exemption till further orders vide order dated 22.11.2019, represented through Shri Vishal Gupta, Advocate.

Accused Vijay Shukla (No. 149), on interim bail, in person

Accused 150 Ajit not present.

Accused Poonam Madan(No. 151) on bail, but granted personal exemption till further orders vide order dated 22.11.2019, represented through Shri Vishal Gupta, Advocate.

Accused Bharat Kumar Mardia (No. 154) not present

Proceedings qua accused Mahendra Kumar Tak (155) stood abated vide order dated 25.03.2022.

Accused Praveen Maheshwari (No.156) and Rajeev Maheshwari (No.157) on bail, but exempted from personal appearance till further order(s) vide order 31.01.2020, represented through Shri Piyush Jain, Advocate.

Accused 158 Ram Lal and 159 Hemant not present.

Accused No.160 Shiv Raj Sharma (sought exemption)

Accused No.161 and 162, 165, 172 not present.

Accused Megha Chauhan No.(No. 163 **sought exemption today**) accused Indu Tak (No. 164 **sought exemption today**), accused Ravi Tak (No. 166 **sought exemption today**) on bail, represented by Sh Neeraj Dev Gaur, Advocate.

Accused Rajeev Verma (No.167), Sushil Maloo (No.168) and Rajendra Singh Bhandari (No.169) on bail, but granted permanent exemption vide order(s) dated 04.09.2019.

Accused Sudhir Mehta(No170) **on bail**, (sought exemption today) represented by Sh Neeraj Dev Gaur, Advocate.

Accused No.171 Raj Kumar Bohra **in person today**, however, **permanently exempted** till further orders.

Accused No.173 Peeyush Aggarwal on bail represented by Sh Prashant Yadav, Advocate

Accused Paramvir Singh Sangwan(No.174) on bail, but granted personal exemption till further order vide order dated 19.02.2021, represented by Shri Dinesh Kumar, Advocate.

Proceedings qua accused Vijay Jindal (175) stood abated vide order dated 25.03.2022.

Accused Raj Kumar Modi (No. 176), on interim bail, in person.

Accused No.177/Rajiv Kumar Rana **in custody**, produced by the concerned jail authority

Accused Mahesh Dutt Sharma(No.178), **on bail**, (sought exemption today) represented through counsel

Accused Ichchhita Dungarwal (No.180) and Neha Kataria (No.181) permanently exempted till further orders vide 22.11.2019, represented by Sh Nitin Desodhya, Advocate (in person)

Accused 182, 183,184, 185, 186 not present.

Accused Mahesh Kumar Tak (No. 187) on bail, represented by Sh Neeraj Dev Gaur, Advocate. (*sought exemption*)

Shri Amit Rathee, Advocate has filed power of attorney on behalf of accused No.177 Rajiv Rana, who is present in Court.

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Heard on the application for appointing Shiv Raj Sharma as approver. In view of contents of application made to become approver and also Hon'ble High Court's order passed while granting bail and further the contents of the statements made before this court on oath, this court allow him to become approver having in mind the provisions of section 306 Cr.P.C as this court has original jurisdiction to entertain this complaint being a special court.

Meantime, learned Special Public Prosecutor is also directed to bring on record amended title, thereby reflecting the names of the persons who have

been granted pardon, as prosecution witness, as per the order(s) passed by learned Predecessor Court.

EXEMPTION APPLICATIONS:

Separate applications seeking exemption from personal appearance(s) are filed on behalf of accused No. 152, 160, 163, 164, 166, 187. After going through the contents of applications of these accused the same stands allowed and the aforesaid accused persons are exempted from personal appearance for today only.

Accused No.113 Mukesh Modi and 114 Rahul Modi 5(i) Accused No.113 Mukesh Modi and accused No.114 Rahul Modi have not been produced by the jail authorities Jodhpur, Rajasthan.

Accused No.135

Nonailable warrant of accused Siddharth Chauhan received back unserved. He be summoned through nonailable warrant of arrest for 17.4.2026.

Production warrants of accused no.113 and 114 be also issued for date fixed.

(Puneet Sehgal)
ASJ, Gurugram
UID No. HR-0183

Date of order: 18.03.2026
Juhi Steno Gr.II